



U.S. Department
of Transportation

Pipeline and
Hazardous Materials
Safety Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JUL 27 2005

DOT-E 14222

EXPIRATION DATE: September 30, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Clean Harbors Environmental Services, Inc.
Bridgeport, NJ
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the one-way transportation in commerce for disposal of boiler stacks described as hazardous waste solid, n.o.s. on a tarped flatbed motor vehicle. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.240(b) in that the use of non-sift-proof closed vehicles is not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of Clean Harbors Environmental Services, Inc.'s dated June 27, 2005 submitted in accordance with § 107.105 and the public proceeding thereon.

JUL 27 2005

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hazardous waste solid, n.o.s. (lead)	9	NA3077	PGIII

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Each boiler stack must be packaged and shipped as follows:

- (1) Double wrapped in 4 mil polyethylene;
- (2) Individually secured on a flat bed motor vehicle.
- (3) Covered with a weather and moisture resistant tarp.

b. OPERATIONAL CONTROLS -

- (1) Transportation must be by motor vehicles owned and operated by Clean Harbors Environmental, Inc.
- (2) Transportation will only be between Dow-Union Carbide Corporation, Texas City, TX and Clean Harbors Environmental Services, Inc. Waynoka, OK with no intermediate stops.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

b. Each boiler stack must be marked in accordance with § 172.302(b) and (c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

JUL 27 2005

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

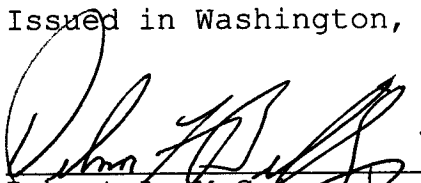
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials

incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials Safety -- OHMEA, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.

for 
Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

JUL 27 2005

DATE

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: DBurger